

Bhoop Singh v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 12 December 2024 · 2024:AHC:194739-DB · Writ - C No. 34543 of 2024 · **Writ disposed with liberty to file a fresh clause 6.5 representation within ten days, to be decided in accordance with law.**

HEADNOTE

Recovery citation for electricity dues of Rs.10,11,565 — correctness disputed — writ disposed with liberty to file a fresh representation under clause 6.5 of the U.P. Electricity Supply Code, 2005 within ten days, to be decided by the authority concerned in accordance with law.

FACTUAL SUMMARY

Bhoop Singh challenged a recovery citation dated 31 July 2023 issued by the Tehsildar, Tehsil Sarila, District Hamirpur, for electricity dues of Rs.10,11,565 plus other charges, and asked that respondents 3 and 4 decide a representation he said was already on file. The Court stayed coercive steps on the citation while the Electricity Department took instructions. On 12 December 2024 the Power Corporation produced documents and maintained that the amount shown was correct. The petitioner disputed that figure and said he had already approached the concerned authority.

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005, clause 6.5

disputed recovery citation — fresh clause 6.5 representation

HOLDING

Where the consumer disputes the correctness of electricity dues under a recovery citation, the writ is disposed of with liberty to file a fresh representation before the authority concerned under clause 6.5 of the U.P. Electricity Supply Code, 2005, within ten days, together with a certified copy of the order. That authority shall consider and decide the representation in accordance with law under clause 6.5. The Court does not itself determine the dues, even where the petitioner states that he has already approached the authority. ¶ 5-7

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ seeking quashing of the recovery citation was disposed of because clause 6.5 was treated as the remedy, with liberty to file a fresh representation within ten days rather than the Court deciding the demand. ¶ 5-7

clause-6.5-statutory-remedy-disputed-bill The Power Corporation asserted that Rs.10,11,565 as reflected was correct and the petitioner disputed it; that dispute over the recovery citation was left to a fresh representation under clause 6.5. ¶ 4-7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CITATION DATED 31.07.2023 FOR RS.10,11,565 AND OTHER CHARGES WAS CORRECT

Left to the authority concerned on a fresh representation under clause 6.5, to be decided in accordance with law. ¶ 4-7